



POLICE DEPARTMENT

May 5, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202310999 (Incident Date: November 19, 2023) regarding Police Officer Vito Scalici, Tax No. 965515 (DADS Case No. 2024-30955)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202310999, pertaining to Police Officer Vito Scalici. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Scalici would be detrimental to the Police Department's disciplinary process.

In this matter, the Police Commissioner agrees with the substantiated allegations, however, disagrees that Charges and Specifications are the appropriate form of discipline. Police Officer Scalici has been a member of the New York City Police Department for six (6) years, has no formal disciplinary history, and no prior substantiated CCRB allegations. Additionally, when Police Officer Scalici said the remark, it was not directed at the complainant, rather it was said out of frustration outside of her earshot. The body worn camera footage shows it was not Police Officer Scalici's intention to offend the complainant, who was not privy to the conversation.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day and formalized training for the substantiated allegations.

Sincerely,


Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office

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Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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MOHAMMAD KHALID
INTERIM CHAIR

May 9, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB Case No. 202310999 (Incident Date: November 19, 2023) regarding Police Officer Vito Scalici, Tax No. 965515 (DADS Case No. 2024-30955)

Commissioner Tisch:

I am writing in response to the letter from Deputy Chief Michael P. Baker, dated May 5, 2025, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications pertaining to Police Officer Vito Scalici and issue a Schedule “A” Command Discipline and impose the forfeiture of one (1) vacation day and Training. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between the CCRB and the New York City Police Department, I am responding to Deputy Chief Baker’s notification.

Deputy Chief Baker’s letter acknowledges that the remark Officer Scalici made in reference to the complainant, to wit, that she was “fucking out of her mind,” was both discourteous and offensive. However, it states that Charges and Specifications are not the appropriate form of discipline because of Officer Scalici’s positive employment history and the fact that he did not direct the discourteous and offensive remark at the complainant. To the extent that the letter distinguishes between remarks made to the complainant and those made to others, the CCRB respectfully disagrees. Such a fact-specific distinction is a potentially mitigating factor that should be weighed by the CCRB in recommending a penalty following service of Charges and Specifications. Indeed, Administrative Guide 304-06, Page 1, Paragraphs 1-2 prohibit discourteous or disrespectful remarks regarding a civilian’s disability regardless of who hears the remarks.

The CCRB recognizes that the Police Commissioner is the final arbiter of discipline and respects her authority to retain jurisdiction over this matter.

Respectfully submitted,

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

May 12, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

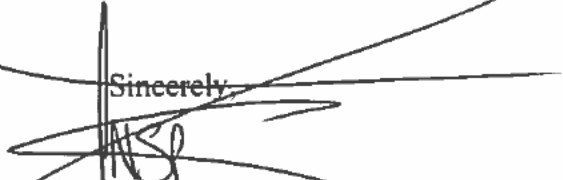
Re: CCRB Case No. 202310999 (Incident Date: November 19, 2023) regarding Police Officer Vito Scalici, Tax No. 965515 (DADS Case No. 2024-30955)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated May 9, 2025, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Vito Scalici, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of said Officer for the reasons expressed in my May 5, 2025, letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs the issuance of a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day and formalized training for the substantiated allegations.

Sincerely,

For 
Michael P. Baker
Deputy Chief
Commanding Officer
Police Commissioner's Office